

**CHAPTER xc.**

An Act [for incorporating and conferring powers on the
Skegness Gas Company. A.D. 1914.
[31st July 1914.]

WHEREAS the Skegness Gas Light and Coke Company Limited (in this Act called "the limited company") were in the year one thousand eight hundred and seventy-seven incorporated under the Companies Act 1862:

And whereas by the Skegness Gas Order 1902 (in this Act referred to as "the Order of 1902") the limited company were authorised to supply and sell gas within the parishes of Skegness and Winthorpe both in the county of Lincoln and it was by that Order provided that the share capital of the limited company for the purposes of the undertaking thereby authorised should not exceed eleven thousand pounds consisting of the share capital then already raised by the limited company of six thousand pounds (in that Order referred to as "the original capital") and of additional capital to be issued subject to the provisions of that Order not exceeding five thousand pounds including any premiums obtained:

And whereas by the same Order it was provided that the amount of all moneys borrowed by the limited company and secured by mortgage of the said undertaking should not at any time exceed in the whole one fourth of the amount of the capital of the limited company at the time actually raised by the issue of shares including any premiums obtained:

And whereas by the Skegness Gas Order 1907 (in this Act referred to as "the Order of 1907") the limited company were authorised to raise further share capital not exceeding twelve thousand pounds including any premium obtained and to borrow not exceeding one third of the amount of such further capital at the time actually raised including any premium obtained:

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And whereas the issued share capital of the limited company at present consists of—

Six thousand pounds divided into one thousand two hundred fully paid-up original shares of five pounds each entitled to a maximum dividend at the rate of ten pounds per centum per annum; and

Thirteen thousand seven hundred and ninety pounds divided into two thousand seven hundred and fifty-eight fully paid-up ordinary shares of five pounds each entitled to a maximum dividend at the rate of seven pounds per centum per annum:

And whereas the limited company have in respect of the issue of shares received premiums to the amount of three thousand two hundred and nine pounds:

And whereas the limited company have borrowed on mortgage sums amounting to six thousand five hundred pounds:

And whereas the demand for gas in the limits of supply of the limited company has increased and is increasing and it is expedient that further capital should be provided for the purposes of the undertaking and that the powers contained in the Order of 1902 and the Order of 1907 for the carrying on and administration of the undertaking should be enlarged and supplemented:

And whereas the land upon which the gasworks of the limited company are situate is held by them on lease for a term of ninety-nine years from the sixth day of April 1878 and it is expedient that the tenure thereof should be converted into freehold and that the provisions of this Act with respect to purchase by agreement or compulsion of the reversion to the said land should be enacted:

And whereas it is expedient that the limited Company be dissolved and reincorporated with further powers as in this Act provided and that such further provisions should be enacted as are in this Act contained:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas a plan of the land by this Act authorised to be purchased compulsorily and a book of reference containing the names of the owners and lessees or reputed owners and

lessees and of the occupiers of the said land were duly deposited with the clerk of the peace for the parts of Lindsey in the county of Lincoln and are in this Act respectively referred to as the deposited plan and book of reference: A.D. 1914.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Skegness Gas Act 1914. Short title.

2.—(1) The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863):

The Lands Clauses Acts:

The Gasworks Clauses Act 1847 (except sections 30 to 34)

Provided that section 35 of that Act shall be read and construed as if the words from “in case the whole” down to “have been paid” were omitted therefrom and as if the expression “the prescribed rate” included the rate of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the special purposes fund and that section 13 shall be read as if the words “or any premises” were inserted after the words “private building” in that section and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section:

The Gasworks Clauses Act 1871.

(2) The provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 incorporated with this Act shall apply as well to the pipes and works of the Company laid

A.D. 1914. — down or constructed before the date of transfer as to any pipes or works which may be laid down or constructed under the authority of this Act.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

The expression “the Company” means the Skegness Gas Company incorporated by this Act;

The expressions “the gasworks” and “the undertaking” respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be continued and maintained by the Company and any improvement and extension thereof which they may make or construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively;

The expression “calorific power” means the total heat value expressed in British thermal units;

The expression “British thermal units” means British thermal units gross per cubic foot of gas.

REINCORPORATION.

Reincorpora-
tion of
Company.

4. As from the date of the passing of this Act (in this Act referred to as “the date of transfer”) the limited company shall be dissolved and the several persons who immediately before the date of transfer were members of that company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby reincorporated by the name of the “Skegness Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of the undertaking.

5. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of supply as defined by this Act and may purchase manufacture convert supply and sell all residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

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General
purposes of
Company.

6. Subject to the provisions of this Act all the lands gasworks erections buildings easements rights powers and privileges which immediately before the date of transfer were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the date of transfer were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the date of transfer belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the date of transfer in force shall be and the same are hereby transferred to and vested in the Company as from the date of transfer to the same extent and for the same estate and interest as the same were previously to the date of transfer vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed maintained altered discontinued removed dealt with and disposed of sued for and recovered by the Company as they think fit.

Present pro-
perty of
limited com-
pany vested
in Company.

7. Subject to the provisions of this Act as from the date of transfer the memorandum and regulations for management of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and regulations for management incurred before the date of transfer but such liability or obligation in respect of any such breach shall continue and

Memo-
randum and
regulations
for manage-
ment of
limited com-
pany to be
void.

A.D. 1914. — save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Saving of
existing
rights and
liabilities.

8. Except as is by this Act otherwise expressly provided everything before the date of transfer done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the memorandum and regulations for management had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and regulations for management were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Contracts
prior to date
of transfer to
be binding.

9. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the date of transfer by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and in force at the date of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or any trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such

affairs were parties immediately before the date of transfer but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

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11. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the date of transfer and who (being authorised so to do) before the date of transfer entered into any bond covenant contract or engagement on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Indemnity.

12. From and after the date of transfer and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the date of transfer were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Company to satisfy liabilities of limited company.

13. All gas rents and sums of money which immediately before the date of transfer were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

Recovery of gas rents &c.

14. All persons who immediately before the date of transfer owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the date of transfer were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be

As to payment of debts owing before date of transfer.

A.D. 1914. — liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Certificates
&c. to re-
main in
force.

15. Notwithstanding the avoidance of the said memorandum and regulations for management all certificates (until cancelled under the powers of this Act) and all sales transfers and dispositions heretofore made or executed under them before the date of transfer for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if the said memorandum and regulations for management had not been avoided.

Books &c.
continued
evidence.

16. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers of
limited com-
pany to
continue.

17. All officers and servants of the limited company who were in office immediately before the date of transfer shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
registers of
members to
be continued.

18. The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

CAPITAL.

Capital.

19. The capital of the Company shall be seventy thousand pounds being the aggregate of the following sums:—

- (1) Ordinary stock to the amount of thirty-one thousand three hundred and six pounds being stock created in respect of the existing share capital of the limited company:
- (2) Thirty-eight thousand six hundred and ninety-four pounds in this Act called "additional capital" which shall be raised in manner hereinafter mentioned.

20.—(1) At the date of transfer there shall be created by virtue of this Act thirty-one thousand three hundred and six pounds of ordinary stock and the Company shall issue such stock and the same shall be divided among and vested in the several persons who immediately before the date of transfer were registered as holders of shares of the limited company in the proportion of ten pounds of such stock for each original five pound share entitled to a maximum dividend of ten pounds per centum per annum held by them respectively and seven pounds of such stock for each ordinary five pound share entitled to a dividend of seven pounds per centum per annum held by them respectively.

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Allocation of stock to shareholders of limited company.

(2) All stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities (except so far as the same may be altered or varied by this Act) as immediately before the date of transfer affected the share or shares as the case may be in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting the same and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the stock created under or by virtue of this Act substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares are hereby expressly authorised and required to accept any stock allocated to and vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the share or shares in the capital of the limited company for which such stock created under or by virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

21.—(1) The Company shall call in the existing certificates of shares in the limited company and issue in exchange for those certificates to the respective proprietors thereof free of charge certificates for the stock to which those proprietors are by this Act respectively entitled.

Certificates of shares to be called in and others issued.

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(2) No shareholder of the limited company shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require.

(3) Until the issue of such new certificates the existing certificates shall (according to the amounts of ordinary stock to be substituted by virtue of this Act for the shares in the capital of the limited company which they respectively represent) have and confer the same rights and advantages as if they were certificates for the respective amounts of ordinary stock created by virtue of this Act.

(4) If any holder of shares in the capital of the limited company neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the register of members of the limited company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

(5) On the issue of any certificate of ordinary stock the certificate or certificates for which it is substituted shall be cancelled.

Transfers of
shares al-
though by
present name
to be valid.

22. All transfers or other dispositions of shares in the capital of the limited company shall after the substitution therefor of ordinary stock and notwithstanding this Act be valid and have due effect given to them respectively as transfers of the respective amounts of ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares

shall be held to apply to a nominal amount of ordinary stock equal to that issued in substitution for such shares under the provisions of this Act. A.D. 1914.

23. All stock of the Company shall be issued and shall be transferable only in amounts of one pound or multiples of one pound but so that the holding of any stockholder shall not be reduced below an amount of five pounds of stock. Notice of the effect of this enactment shall be stated in all certificates of such stock. Stock to be transferable in multiples of one pound.

24. Subject to the provisions of this Act the provisions of sections 11 to 13 18 to 20 and 62 to 64 in each case inclusive of the Companies Clauses Consolidation Act 1845 shall extend and apply to all stock of the Company as if the same were shares or stock dealt with by the said sections. Application of certain provisions of Companies Clauses Consolidation Act 1845 to stock of Company.

25. The Company may from time to time raise additional capital not exceeding in the whole thirty-eight thousand six hundred and ninety-four pounds by the creation and issue at their option of new ordinary stock or preference stock or partially by one or other of those modes. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of thirty-eight thousand six hundred and ninety-four pounds. Power to raise additional capital.

26.—(1) All stock created under the powers of the section of this Act of which the marginal note is “Power to raise additional capital” shall be issued in accordance with the provisions of this section. New stock to be sold by auction or tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of every district council whose district is wholly or partially within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

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(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

(c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds :

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of stock if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the

total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock. A.D. 1914.

27. Except as is otherwise by this Act provided all additional capital created by the Company under this Act shall be part of the general capital of the Company and the new ordinary stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other powers rights and privileges in proportion to the amount of their stock and shall be subject to the like provisions and liabilities in all respects as the holders of ordinary stock issued under this Act in substitution for shares in the limited company. Privileges &c. of holders of additional capital.

BORROWING POWERS.

28. The Company may at any time after the date of transfer borrow at interest on mortgage of the undertaking in respect of the ordinary stock which is by this Act substituted for the capital of the limited company (including premiums thereon) any sum or sums of money not exceeding in the whole (inclusive of the sum of six thousand five hundred pounds already borrowed by the limited company) the sum of seven thousand six hundred and sixty-six pounds. Power to borrow in respect of ordinary stock.

29. The Company may subject to the provisions of this Act borrow at interest on mortgage of the undertaking in respect of the additional capital by this Act authorised to be raised any sum or sums not exceeding in the whole one-third part of the amount of such additional capital which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof has been fully paid up. Power to borrow in respect of additional capital.

30. All mortgages and debenture bonds granted by the limited company before and subsisting at the date of transfer shall during the continuance of such mortgages and debenture bonds and subject to the terms thereof have priority over any mortgages or debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Existing mortgages to have priority.

A.D. 1914.

Debenture
stock.

31. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on all debenture stock and on all mortgages at any time after the date of transfer created and issued or granted by the Company under this or any subsequent Act and affecting the undertaking shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts &c.

32. All money raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act and all moneys continued on mortgage of the undertaking shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the date of transfer but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

For appoint-
ment of a
receiver.

33. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one tenth of the amount for the time being owing by the Company on mortgage.

APPLICATION OF PROFITS.

Limitation of
profits.

34. Except as is by this Act provided the profits of the Company to be divided among the holders of ordinary stock of the Company in any year shall not exceed the rate (in this Act referred to as "the standard rate of dividend") of five pounds per centum per annum and the profits of the Company

to be divided among the holders of preference stock shall not exceed the rate of five pounds per centum per annum. A.D. 1914.

35.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums thereon to a fund to be called “the special purposes fund.” Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for the maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

36. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and the dividend at the authorised rate on the ordinary stock of the Company the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividends at the authorised rates. Application of excess of profits over authorised rates of dividend.

A.D. 1914.

Power to
create a re-
serve fund.

37. Where in any year the dividend which may be paid by the Company on the ordinary stock shall exceed the standard rate of dividend by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the date of transfer may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary stock and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

MEETINGS.

First
ordinary
meeting.

38. The first ordinary meeting of the Company shall be held within six months after the date of transfer and the subsequent ordinary meetings shall be held yearly in the month of February or March in each year at the Company's principal office or at such other place and at such other time as shall be appointed for that purpose by an order of a general meeting.

Quorum for
general
meetings.

39. The quorum for all general meetings of the Company shall be seven stockholders present in person or by proxy holding in the aggregate and entitled to vote in respect of not less than one twentieth of the issued capital of the Company.

Scale of
voting.

40. As from the date of transfer every holder of ordinary stock shall be entitled to one vote and an additional vote in respect of every ten pounds of such stock held by him beyond the first ten pounds.

Restriction
as to votes
in respect of
preference
stock.

41. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any stock to which a preferential dividend shall be assigned.

DIRECTORS AND AUDITORS.

A.D. 1914.

42.—(1) The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than six nor less than three.

Number
qualification
and disquali-
fication of
directors.

(2) The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than two hundred pounds.

(3) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

(4) If any director shall be made bankrupt or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(5) The continuing directors may act notwithstanding any vacancy in the number of directors.

43.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any

As to ap-
pointment of
managing
director.

A.D. 1914. — limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exercisable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Quorum of directors.

44. The quorum of a meeting of directors shall be three.

Notice of candidature for office of director.

45. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

First and subsequent directors.

46. George Dunkley Charles Frederick Grantham Abraham Thomas Mills Porter Millson Enderby and George Waite shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the date of transfer At that meeting the stockholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the places of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for election and at the ordinary meeting in every year after the said first ordinary meeting the

stockholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead. A.D. 1914.

47.—(1) The prescribed number of auditors shall be one unless the number be increased to two or any greater number by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants in England and Wales or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade. Auditors.

(2) It shall not be necessary for any auditor to hold any stock in the Company.

GASWORKS SUPPLY OF GAS &C.

48. The limits within which the Company may supply gas under this Act (in this Act called “the limits of supply”) shall be the parishes of Skegness and Winthorpe both in the county of Lincoln. Limits of supply.

49. Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act maintain alter improve enlarge extend and renew or discontinue the existing gasworks of the limited company and may also upon those lands erect make maintain alter improve enlarge extend and renew or discontinue additional and other gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may on the said lands convert and manufacture supply sell and deal in residual products resulting from the manufacture of gas. Powers as to construction and maintenance of gasworks &c.

50. The Company may purchase compulsorily or by agreement the freehold of the lands described in the schedule to this Act. Power to purchase freehold of gasworks land.

51. The powers of the Company for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the date of transfer. Period for compulsory purchase of lands.

A.D. 1914.

Power to
purchase
lands by
agreement.

52. The Company may for the purposes of the undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands authorised to be so used by this or any other Act affecting the undertaking.

Power to
sell and
lease lands.

53. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell and dispose of or may let on lease for such periods as they may think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of the undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company may think fit.

Power to lay
pipes &c. for
purposes
ancillary to
business of
Company.

54. The Company may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
lay pipes in
private
streets.

55. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if section 7 of the Gasworks Clauses Act 1847 were excepted from incorporation with this Act.

For protec-
tion of com-
missioners of

56. For the protection of the commissioners of sewers for the county of Lincoln (in this section referred to as "the

commissioners") the following provisions shall unless otherwise agreed in writing between the commissioners and the Company apply (that is to say):—

A.D. 1914.

sewers for
county of
Lincoln.

(1) Before the Company proceed to execute any work interfering with or affecting any river sewer drain sea defence bank or other work subject to the jurisdiction or control of the commissioners they shall give to the surveyor of the commissioners or their clerk or other officer at least three clear days' notice of their intention to execute such work before commencing the same except in case of emergency in which case such notice shall be given as soon as possible after the commencement of the work or the necessity for the work shall have arisen and every such intended work shall subject as hereinafter provided be executed and carried out under the superintendence and to the reasonable satisfaction of the surveyor of the commissioners Provided that if after such notice having been given as aforesaid such surveyor shall fail refuse or neglect to superintend any such work the Company may execute and carry out the work specified in such notice without the superintendence of such surveyor:

(2) Nothing in this Act contained shall be deemed or construed to extend to prejudice diminish alter abridge or take away any of the jurisdictions rights powers or authorities vested in the commissioners and all the jurisdictions rights powers and authorities vested in them shall be as good valid and effectual to all intents and purposes as if this Act had not been passed:

(3). If any question or dispute arises under this section between the commissioners or their surveyor on the one hand and the Company or their engineer on the other hand the same shall be determined by two justices.

57. In executing the works and exercising the powers by this Act authorised so far as they affect any road bridge or culvert in the rural district of Spilsby vested in or under the control of the Spilsby Rural District Council (in this section called "the council") the Company shall be subject to the

For protec-
tion of
Spilsby Rural
District
Council.

A.D. 1914. following provisions unless otherwise agreed in writing between the Company and the council (that is to say):—

- (1) The Company shall not interfere with the structural part of any bridge or culvert without the consent in writing of the council under the hand of their clerk or surveyor which consent shall not be unreasonably withheld:
- (2) Nothing in this Act contained shall interfere with the right of the council to alter deviate or improve any road bridge or culvert in or along which any main pipe or work of the Company shall have been laid or constructed and in the event of any such road bridge or culvert being altered deviated or improved as aforesaid the Company shall at the expense of the council so soon as practicable after receiving notice in writing under the hand of the clerk or surveyor of the council remove or alter the position of any such main pipe or work in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration Provided that the council shall afford reasonable facilities for temporarily carrying such main or pipe so as not to interrupt the continuous supply of gas:
- (3) All works shall be so executed by the Company as not to stop and so far as reasonably practicable as not to interfere with or impede the traffic on any road:
- (4) Whenever the Company shall have opened or broken up any road they shall complete the work and fill in the ground to the reasonable satisfaction of the surveyor of the council and the re-instatement and making good of the road shall include the application of a sufficient layer of surface metalling of the same specification as that employed by the council for the particular road:
- (5) If any difference arises between the Company and the council under this section such difference shall be settled by arbitration by an engineer to be appointed failing agreement by the Local Government Board on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

58. The following provisions for the protection of the Great Northern Railway Company (hereinafter in this section called "the Great Northern Company") shall unless otherwise agreed in writing between the Company and the Great Northern Company apply and have effect:—

A.D. 1914.

For protec-
tion of Great
Northern
Railway
Company.

- (1) Whenever under the powers of this Act the Company shall require to lay down repair alter remove or renew any mains pipes culverts or apparatus in upon or over any street bridge approach or level crossing of or repairable by the Great Northern Company they shall (except in cases of emergency) give to the chief engineer of the Great Northern Company seven clear days' notice in writing of their intention to carry out any such works :
- (2) Such works shall be laid constructed and executed at the expense of the Company under the superintendence (if given) and to the reasonable satisfaction of the said engineer and except in cases of emergency according to such plan as shall be reasonably approved by him or in case of any difference respecting such plan then according to such plan as shall be determined by two justices Provided always that if the said engineer fails to attend at the time fixed by such notice or shall not propose any such plan or shall neglect or refuse so to superintend as aforesaid then the Company may perform the work specified in such notice without the superintendence of the said engineer and such work shall be executed and carried out so as to avoid as far as possible injury to such street bridge approach or level crossing or to any railway or works of the Great Northern Company and so as not to cause any interruption to the passage or conduct of the traffic over such railway :
- (3) When the Company open or break up any road or pavement of any street or other works belonging to or repairable by the Great Northern Company they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after

A.D. 1914.
—

reinstatement and making good and for such further time if any as the surface so broken up shall continue to subside :

- (4) If the Company make any unnecessary delay in completing such work or reinstatement and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the Great Northern Company may cause such works to be executed or effect such repair and the reasonable expense of executing the same shall be repaid to them by the Company :
- (5) The Company shall repay to the Great Northern Company the reasonable expense of any temporary works and watching and signalling which may be necessary to provide for the protection of any such railway or the traffic thereon or thereto during the carrying out of the works aforesaid :
- (6) The Company shall make reasonable compensation to the Great Northern Company for any damage that may be done in the execution of the said works and in the event of any dispute as to the amount of any such compensation the same shall be determined by arbitration in manner hereinafter provided :
- (7) Any difference which may arise between the Company and the Great Northern Company under the provisions of this section shall unless otherwise provided or agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

Dividend
dependent
on price
charged.

59. The standard price to be charged by the Company for gas supplied by them by ordinary meter shall be three shillings and sixpence per one thousand cubic feet :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary stock as follows :—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend

payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds; A.D. 1914.

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds:

Provided also that if in any year the dividends payable shall comprise a fractional amount less than one quarter per centum the directors of the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

60. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing place shall be provided by the Company within three months after the date of transfer on the lands described in the schedule to this Act. Testing place.

61. Within six months from the date of transfer the Company shall provide and maintain at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them at such testing place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905. Company to provide apparatus for testing calorific power.

62. The gas supplied by the Company within the limits of supply shall when tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees for testing the calorific power of gas be of a standard calorific power of five hundred and forty British thermal units. Provided that the Company shall not be liable to any penalty or Calorific power.

A.D. 1914. — proceedings for or in respect of deficient calorific power of the gas so supplied by them except in accordance with the provisions hereinafter contained.

Provisions as to testing for calorific power.

63. As from the time when the Company shall have provided the apparatus mentioned in the section of this Act whereof the marginal note is "Company to provide apparatus for testing calorific power" the following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company within the limits of supply:—

- (1) Not more than one testing for calorific power shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific power being on any testing ascertained to be below the standard calorific power to an extent exceeding seven and one half per centum the gas examiner shall forthwith give notice thereof to the Company and a second testing shall be made on the same day but at an interval of not less than one hour from the time of making the first testing and the average of the two testings shall be deemed to be the calorific power of the gas on that day:
- (2) Such of the provisions of section 12 of the Gasworks Clauses Act 1871 as relate to the testing for illuminating power shall not apply to the Company and sections 28 29 30 31 32 and 33 of the said Act in its application to the Company shall be construed as if calorific power were therein referred to in lieu of illuminating power.

Penalties for deficient calorific power.

64. Where the calorific power on any day of the gas supplied by the Company at the testing place is below the standard calorific power to an extent exceeding seven and one half per centum they shall be liable to the following penalties in respect of any deficiency below such last-mentioned margin (that is to say):—

Where the deficiency does not exceed fourteen British thermal units forty shillings;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds:

Provided that the Company shall not be liable to any penalty in any case in respect to which it is proved before the justices that the defect of calorific power was occasioned by unavoidable cause or accident. A.D. 1914.

65.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

66. No penalties shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to penalties.

67.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive heating and ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be and all fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times

A.D. 1914. — continue to be the property of and removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

Consumers
to give
notice to
Company
before re-
moving.

68. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to
refuse supply
to persons in
debt for other
premises.

69. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to
discontinue
supply.

70. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Period of
error in
defective
gas meters.

71. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

72. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times and at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

A.D. 1914.
Anti-fluctua-
tors for gas
engines.

73. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to
enter pre-
mises and
remove
fittings.

74. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Company a supply of gas for any premises for which he has at the same time a supply of gas from any installation other than that of the Company or a supply of electricity unless he shall have agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Supply of
gas where
consumer has
separate
supply.

75. The Company may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may

Company
may contract
with local
authority &c.
for supply in
bulk.

A.D. 1914. be agreed upon but nothing in this section shall authorise the
 -- Company to lay any mains or interfere with any street beyond
 . the limits of supply.

MISCELLANEOUS.

Application
of moneys.

76. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Receipt in
case of per-
sons not sui
juris.

77. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
make super-
annuation
and other
allowances.

78. It shall be lawful for the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Profit
sharing.

79.—(1) The directors of the Company may with the sanction of a majority of the stockholders present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify or alter a scheme enabling the workmen servants and employees of the Company (hereinafter called “employees”) or any class or classes of such employees as may be defined in any such scheme to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen and shall be in writing and may be made on the part of the Company under the hands of any two directors of the Company or under the hand of the secretary of the Company or of any person from time to time appointed in that behalf by resolution of the board of directors of the Company.

Company to
pay interest
on money
deposited as

80. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way

of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands as security.

A.D. 1914.

security for
gas meter
&c.

81. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials employed in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Power to
take licences
for use of
patents.

82. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Dwelling-
houses for
workmen.

83. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Power for
directors to
determine
remuneration
of secretary.

84. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

85. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or of gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on

Authentica-
tion and
service of
notices by
Company.

A.D. 1914. — such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of penalties &c.

86. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Company not to oppose application by urban district council of Skegness to purchase undertaking.

87.—(1) If the urban district council of Skegness (which council is in this section called "the council") shall introduce a Bill in the next session of Parliament and bonâ fide promote the same for an Act to empower the council to purchase the undertaking of the Company the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses and amendments to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit and if the council obtain an Act authorising such purchase by the council the council shall give notice of their intention to purchase within six months after the passing of such Act and thereupon the Company shall sell and transfer and the council shall purchase the undertaking of the Company subject to all their then existing debentures mortgages obligations and liabilities.

(2) If such Bill receives the Royal Assent nothing in this Act shall authorise the Company for the purpose of the determination of the purchase price to be paid for the said undertaking to bring into account or to make any claim in respect of any powers rights or advantages conferred on them by or resulting from the passing of this Act other than in respect of moneys borrowed in pursuance of subsection (3) of this section.

(3) If the council shall give notice for such Bill as aforesaid in October or November one thousand nine hundred and fourteen the Company shall not except with the consent of the council and save as hereinafter provided raise any capital in pursuance of this Act during the promotion of such Bill. Provided that notwithstanding the limitations contained in the section of this Act whereof the marginal note is "Power to borrow in respect of additional capital" the Company shall be entitled at any time after the date of transfer to raise by borrowing such sum or sums as may be necessary for carrying on the undertaking in the ordinary course of business and satisfying existing obligations.

A.D. 1914.

88. As from the date of transfer and subject to the provisions of this Act the Order of 1902 and so much of the Gas Orders Confirmation (No. 1) Act 1902 as relates thereto and the Order of 1907 and so much of the Gas and Water Orders Confirmation (No. 1) Act 1907 as relates thereto are hereby repealed.

Repeal of
Order of
1902 and
Order of
1907.

89. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

Copy of Act
to be regis-
tered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

90. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as to
general Acts.

A.D. 1914.

Costs of Act.

91. All the costs charges and expenses of and incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Act.

LANDS FOR GASWORKS.

A piece or parcel of land situate in the parish of Skegness in the county of Lincoln containing by admeasurement one acre three roods twenty-eight perches or thereabout now in the occupation of the limited company and held by them under lease from Viscount Lumley bearing date 4th October 1880 for the term of 99 years from the 6th day of April 1878 which piece or parcel of land is bounded on or towards the north partly by Alexandra Road and partly by lands belonging or reputed to belong to the Great Northern Railway Company on or towards the east by lands belonging or reputed to belong to the said Great Northern Railway Company on or towards the south by lands belonging or reputed to belong to the Earl of Scarbrough and on or towards the west in part by lands belonging or reputed to belong to the Earl of Scarbrough and in other part by lands now or late belonging to or reputed to belong to Sam John King or his representatives.

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